



U.S. Customs and Border Protection

PUBLIC VERSION

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RE: Notice of Final Determination as to Evasion

To the Counsel and Representatives of the above-referenced Entities:

After an examination of the record in Enforce and Protect Act (EAPA) Consolidated Investigation 7673, U.S. Customs and Border Protection (CBP) has determined there is substantial evidence that Uni-Tile & Marble, Inc. (Uni-Tile); Durian Kitchen Depot Inc. (Durian); Kingway Construction and Supplies Co., Inc. (Kingway); Lonlas Building Supply Inc. (Lonlas); Maika'i Cabinet & Stone Inc. (Maika'i); and Top Kitchen Cabinet Inc. (Top Kitchen), (collectively referred to as the "Importers") evaded antidumping (AD) and countervailing duty (CVD) orders A-570-106 and C-570-107 (collectively referred to as the *Orders*), respectively, on wooden cabinets and vanities and components thereof (WCV) from the People's Republic of China (China)¹ by entering merchandise covered under the *Orders* into the customs territory of

¹ See *Wooden Cabinets and Vanities and Components Thereof from the People's Republic of China: Antidumping Duty Order*, 85 FR 22126 (U.S. Department Commerce, Apr. 21, 2020) and *Wooden Cabinets and Vanities and*

the United States through evasion. Substantial evidence demonstrates that imports of Chinese-origin WCV were misrepresented with the country of origin as Malaysia. As a result, no cash deposits were applied to the merchandise at the time of entry.

BACKGROUND

On October 13, 2021, the American Kitchen Cabinets Alliance (the *Alleger*) – a coalition of domestic producers of WCV – filed an allegation against the Importers.² On November 10, 2021, the Trade Remedy Law Enforcement Directorate (TRLED), within CBP’s Office of Trade, formally acknowledged receipt of the properly filed allegations against the Importers by the *Alleger*.³ TRLED found the information provided in the allegations reasonably suggested that the Importers entered covered merchandise – WCV originating from China – into the customs territory of the United States through evasion. Consequently, CBP initiated a consolidated investigation with respect to the Importers on December 3, 2021, pursuant to Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015.⁴

Notice of Initiation and Interim Measures (NOI)

After evaluating all of the information on the record at the time, on March 10, 2022, CBP issued its Notice of Initiation and Interim Measures.⁵ TRLED determined that reasonable suspicion existed that the WCV imported into the United States by the importers and reported as Malaysian

Components Thereof from the People's Republic of China: Countervailing Duty Order, 85 FR 22134 (U.S. Department of Commerce Apr. 21, 2020), respectively. Those notices indicate the suspension of liquidation for CVD occurred for entries on or after August 12, 2019, and the suspension of liquidation for AD occurred for entries on or after October 9, 2019, the respective publication dates of the affirmative preliminary determinations in the U.S. Department of Commerce investigations.

² See Letter from the *Alleger*, “Wooden Cabinets and Vanities and Components Thereof from the People’s Republic of China: Request for an Investigation under the Enforce and Protect Act of Uni Tile and Marble Inc. for Transshipment through Malaysia,” dated October 13, 2021 (Uni Tile and Marble Allegation); see also Letter from the *Alleger*, “Wooden Cabinets and Vanities and Components Thereof from the People’s Republic of China: Request for an Investigation under the Enforce and Protect Act of Durian Kitchen Depot Inc. for Transshipment through Malaysia,” dated October 13, 2021 (Durian Allegation); see also Letter from the *Alleger*, “Wooden Cabinets and Vanities and Components Thereof from the People’s Republic of China: Request for an Investigation under the Enforce and Protect Act of Kingway Construction Supplier for Transshipment through Malaysia” dated October 13, 2021 (Kingway Allegation); see also Letter from the *Alleger*, “Wooden Cabinets and Vanities and Components Thereof from the People’s Republic of China: Request for an Investigation under the Enforce and Protect Act of Lonlas Building Supply Inc. for Transshipment through Malaysia” dated October 13, 2021 (Lonlas Allegation); see also Letter from the *Alleger*, “Wooden Cabinets and Vanities and Components Thereof from the People’s Republic of China: Request for an Investigation under the Enforce and Protect Act of Maikai Cabinet & Store for Transshipment through Malaysia” dated October 13, 2021 (Maikai Allegation); see also Letter from the *Alleger*, “Wooden Cabinets and Vanities and Components Thereof from the People’s Republic of China: Request for an Investigation under the Enforce and Protect Act of Top Kitchen Cabinet for Transshipment through Malaysia” dated October 13, 2021 (Top Kitchen Cabinet Allegation) (collectively, the Allegations).

³ See Email from CBP, “Receipt of Properly Filed Allegation (Uni Tile & Marble Inc.),” dated November 10, 2021; Email from CBP, “Receipt of Properly Filed Allegation (Durian Kitchen Depot Inc.),” dated November 10, 2021; Email from CBP, “Receipt of Properly Filed Allegation (Kingway Construction Supplier Inc.),” dated November 10, 2021; Email from CBP, “Receipt of Properly Filed Allegation (Lonlas Building Supply),” dated November 10, 2021; Email from CBP, “Receipt of Properly Filed Allegation (Maika’i Cabinet & Store),” dated November 10, 2021; Email from CBP, “Receipt of Properly Filed Allegation (Top Kitchen Cabinet),” dated November 10, 2021.

⁴ CBP consolidated EAPA investigations 7673, 7693, 7694, 7695, 7696, and 7697 on Uni-Tile, Durian, Kingway, Lonlas, Maika’i, and Top Kitchen, respectively, into a single investigation. See Memorandum, “Initiation of Consolidated Investigation for EAPA Case 7673,” dated December 3, 2021 (Initiation Memorandum).

⁵ See Memorandum, “Notice of Initiation of Investigation and Interim Measures: Consolidated EAPA Case 7673,” dated March 10, 2022 (NOI).

in origin was, in fact, manufactured in China.⁶ Specifically, TRLED based its finding of reasonable suspicion on information provided in the allegation and the failure of the Importers to provide sufficient production records in their CF28 responses demonstrating their imported merchandise was produced by the claimed manufacturers, LLWF Cabinets and Stone (LLWF), MSW Building Supply Sdn. Bhd. (MSW), and South Wales Furniture Sdn. Bhd. (South Wales) in Malaysia.⁷ In addition, for the NOI, CBP relied on its own research of the relationships between the three manufacturers, onsite visits in Malaysia to the factory locations, relationships with a certain logistics company, and the importation of additional products subject to AD/CVD orders in China to find reasonable suspicion of evasion. This information is detailed below.

MSW, LLWF, and South Wales

CBP obtained information from the [names of companies] with respect to the following companies claimed to be the manufacturers of the subject merchandise: LLWF, MSW, and South Wales.⁸ CBP found that these three companies all share a web of employees, directors, shareholders and addresses.⁹ For example, South Wales shares two Malaysian addresses with LLWF.¹⁰ Jia Hui Ng is the director (or co-director) for all three companies.¹¹ As these three companies are operated by the same individuals, albeit at varying addresses, and supply certain importers under investigation with WCV, CBP finds these companies (collectively referred to by CBP as “MSW Companies”) act as a single entity, as explained in more detail in the NOI.¹² All of the Importers attempted to provide WCV production information for South Wales and LLWF;¹³ however, there is no record evidence indicating that MSW has WCV manufacturing capabilities.¹⁴

Preliminary Onsite Visits in Malaysia

CBP conducted preliminary onsite visits to the three locations of the MSW Companies in Malaysia. On January 27, 2022, CBP conducted a preliminary onsite visit to two locations associated with the MSW Companies. On February 5, 2022, CBP conducted another on site visit at the third location associated with the MSW Companies.

⁶ See, e.g., the March 3, 2021, email entitled “Internal CBP Email of Determination and Interim Measures.”

⁷ See, generally, NOI.

⁸ There is also information to support that Monthong Building Supply Sdn. Bhd. (Monthong) and MSI Building Supply Sdn. Bhd. (MSI) are related to MSW, LLWF, and South Wales through shared employees, directors, shareholders and addresses. See Memorandum to the File “Adding Information to the Administrative Record,” dated March 2, 2022 (March 2, 2022 Memorandum) at Attachment 1 (containing Notice of Initiation of Investigation and Interim Measures – EAPA Cons. Case 7657 (CBP Feb. 8, 2022) (NOI EAPA 7657) at 19); Memo to the File, “Consolidated EAPA Investigation 7673: Information Pertaining to Malaysian Exporters,” dated February 8, 2022 (Malaysian Companies Memo) at Attachment 1 for a summary chart which indicates the various overlaps between these five companies, and the [name] reports we received for each company.

⁹ See Malaysian Companies Memo at Attachment 1.

¹⁰ *Id.*

¹¹ *Id.*

¹² *Id.* See also Shenzhen Ark Cross-Border Logistics Co., Ltd. section below.

¹³ See Uni-Tile’s CF28 Response, dated January 17, 2022; Durian’s CF28 Responses, dated January 17, 2022; Kingway’s CF28 Responses, dated January 17, 2022; Lonlas’s CF28 Response, March 2, 2022; Maika’i’s CF28 Response, dated January 11, 2022; and Top Kitchen’s CF28 Response, dated January 18, 2022 (collectively, Importers’ CF28 Responses).

¹⁴ CBP issued a CF28 questionnaire to Kingway, dated December 17, 2021, with respect to a shipment of quartz surface product with MSW labeled as a manufacturer; Kingway labeled MSW as being the “trading company only.”

The first site was the registered business address of MSW, No. 3, Jalan Ikan Mata Duyong/KS 10, Kampung Nelayan, Telok Gong, Port Klang Selangor, 42000. The CBP official conducting the site visit indicated that there were four buildings at the address. The CBP official further indicated that no one was present at the gate of the business and that no manufacturing activity could be heard. In the photographs, a container can be seen behind the gate of the building, but there is no visible sign of activity in any of the photographs. Pictures from the site visit have been placed on the record.¹⁵

The second site was the business address given in the CF28 responses as the current address for South Wales and LLWF, PT 11929, JLN Perajurit, KG Telok Gong, Pelabuhan Klang, Selangor, 42000.¹⁶ During the onsite visit, the CBP official could not find a building corresponding with the given address.¹⁷ Based on the pictures provided by the CBP official, the current address does not have a building or factory present at that location.¹⁸ Therefore, TRLED was unable to confirm that the production pictures provided are associated with the current address for South Wales or LLWF.

The third site visit was to the former South Wales address at No. 2, Jalan Semenyih Permata Utama, Taman Semenyih Permata, 435000.¹⁹ The CBP official found a building that could have been a warehouse or factory in an industrial area.²⁰ The CBP official indicated that the sign near the front of the building indicated that South Wales was previously located at this facility.²¹ While the third site matches the building and manufacturing facilities on South Wales' website, the production pictures provided in the various CF28 responses do not match the information on South Wales' website.²² Specifically, the windows are located in different areas and the pictures provided in the various CF28 responses do not match the photos found on South Wales' website. Therefore, TRLED was unable to confirm that the production pictures provided in the various CF28 responses are associated with South Wales' previous address.

Shenzhen Ark Cross-Border Logistics Co., Ltd.

Record evidence indicates Shenzhen Ark Cross-Border Logistics Co., Ltd. (Ark Trans), a logistics company located in China, coordinates with and/or controls the MSW Companies and one of the importers under investigation, *i.e.*, Durian.²³ In addition to the evasion scheme discussed in the Allegations with respect to the MSW Companies, record evidence indicates that Ark Trans is participating in an evasion scheme involving other Malaysian and Chinese companies to evade AD/CVD duties on other products, such as quartz surface products (QSP).²⁴

¹⁵ See Memo to the File, "Consolidated EAPA Case 7673: Site Visit by Customs and Border Protection," dated Feb 10, 2022, Memo (Feb 10, 2022, Memorandum) at Attachment 1.

¹⁶ See Feb 10, 2022, Memorandum at Attachment 2; Importers' CF28 Responses.

¹⁷ See Feb 10, 2022, Memorandum at Attachment 2.

¹⁸ See Feb 10, 2022, Memorandum at Attachment 2; Importers' CF28 Responses.

¹⁹ See Feb 10, 2022, Memorandum at Attachment 3.

²⁰ *Id.*

²¹ *Id.*

²² See Feb 10, 2022, Memorandum at Attachment 3; Malaysian Companies Memo at Attachment 4; Importers' CF28 Responses.

²³ See Malaysian Companies Memo at Attachment 3; Durian's CF28 Responses; Kingway's CF28 Response; arch 2, 2022, Memorandum at Attachment 1 (containing NOI EAPA 7657 at 27 – 30).

²⁴ *Id.*; Durian's CF28 Responses; Kingway's CF28 Response; March 2, 2022, Memorandum at Attachment 1 (containing NOI EAPA 7657 at 27 – 30).

The contact page for Ark Trans lists contact information for “Manager Huang.”²⁵ Record evidence indicates this contact information is also the phone number for a Chinese QSP producer, Guangdong Yuanjing Stone Co., Ltd. (Guangdong Yuanjing).²⁶ Guangdong Yuanjing’s website, and its listing on a commercial website, indicate the contact person for the company is Huang Jianmin, *i.e.*, the same Mr. Huang discussed in the Allegations who, according to [name] data, is the owner of MSW.²⁷

Ark Trans is a freight forwarder specializing in helping Chinese companies avoid AD/CVD duties.²⁸ According to the Ark Trans website, under the “Company Culture” section, it states:

Our {A}rk {L}ogistics took 20 {y}ears of logistics experience in China and the United States, in the face of the anti-dumping trade barriers established by the United States against China, many domestic factories are struggling in this crisis, Ark Logistics also carries the expectations of many domestic manufacturers, bypassing the anti-dumping review of the United States, and finally successfully delivered the goods to the other side of the ocean.²⁹

On its website, Ark Trans repeatedly uses the word “re-export” as a euphemism for transshipment or duty evasion, and also notes that one of its specialties is the “re-export” of Chinese-origin WCV from Malaysia. On its website, Ark Trans states that the company:

- provides various comprehensive international freight solutions to a number of well-known foreign trade companies involved in WCV, as well as QSP, mattresses, aluminum, *etc.*;
- has warehouses and factories in Malaysia which offer transshipment services that include a certificate of origin and delivery to the United States; and,
- stated under the “Company News” section that it is committed to focusing on re-export services for QSP and WCV from Malaysia.³⁰

MSW Companies evading AD/CVD duties

There is also record evidence indicating that the MSW Companies – the alleged manufacturers of the imported products – are involved in transshipping more than one product currently under AD/CVD orders. On December 17, 2021, CBP requested information from Maika’i concerning entry number [#]2185, which had an entry date of [date] and was declared as [product].³¹ Maika’i submitted a timely but partial response on January 11, 2022.³² Maika’i indicated that LLWF was the supplier for the merchandise and that LLWF sourced the merchandise from Malaysian company [place].³³ In the CF28 response, Maika’i and LLWF submitted minimal information on how the [product] were produced in Malaysia and the packing list they provided even included [name] on it, even though

²⁵ *Id.*; March 2, 2022, Memorandum at Attachment 1 (containing NOI EAPA 7657 at 27 – 30).

²⁶ *Id.* at Attachment 2.

²⁷ *Id.*

²⁸ *Id.* at Attachment 3; Durian’s CF28 Responses; Kingway’s CF28 Response; *see also* March 2, 2022, Memorandum at Attachment 1 (containing NOI EAPA 7657 at 27 – 30).

²⁹ *Id.*; March 2, 2022, Memorandum at Attachment 1 (containing NOI EAPA 7657 at 27 – 30).

³⁰ *Id.*; March 2, 2022, Memorandum at Attachment 1 (containing NOI EAPA 7657 at 27 – 30).

³¹ *See* second CF28 issued to Maika’i, dated December 17, 2021.

³² *See* second CF28 Response from Maika’i, dated January 11, 2022.

³³ *Id.*

this merchandise was not declared in this entry. [name] is another product under AD/CVD order.³⁴ MSW Companies have a history of exporting merchandise that are subject to Chinese AD/CVD duties and claiming that these goods were produced in Malaysia without being able to provide proper evidence of the merchandise's country of origin. The fact that Mr. Huang and Ark Trans are involved in evading duties on a variety of products is yet another piece of evidence reasonably suggesting that -MSW Companies-sourced Chinese-origin WCV are being transshipped from China through Malaysia.

Request for Information

After the issuance of the NOI, CBP, pursuant to 19 CFR 165.23, sent requests for information (RFIs) to the Importers and the MSW Companies asking for information about corporate structure and affiliations, accounting and financial practices, and sales-specific order, sales, transport, and production details.

Uni-Tile

CBP issued a RFI and a supplemental RFI to Uni-Tile on March 25, 2022, and April 29, 2022, respectively, and received timely responses to both the RFI and the supplemental RFI.³⁵

Durian

CBP issued an RFI to Durian on March 25, 2022, with an April 8, 2022, due date.³⁶ Durian did not submit a response by the deadline. On April 29, 2022, CBP issued a RFI to Durian's address in Malaysia, via FedEx and via email, with a deadline of April 22, 2022.³⁷ Durian was advised that failure to respond would result in the application of adverse inferences.³⁸ Again, Durian did not submit a response.

Kingway

CBP issued an RFI and two supplemental RFIs to Kingway on March 25, April 29, and May 20, 2022, respectively, and received timely responses to both the RFI and the supplemental RFIs.³⁹

Lonlas

CBP issued an RFI to Lonlas on March 25, 2022, with an April 8, 2022, due date.⁴⁰ Lonlas did not submit a response by the deadline. On April 14, 2022, CBP issued a RFI to Lonlas's address in Malaysia, via FedEx and via email, with a deadline of April 22, 2022.⁴¹ Lonlas was advised that failure to respond would result in the application of adverse inferences.⁴² Again, Lonlas did not submit a response.

³⁴ *Id.*

³⁵ See Uni-Tile's RFI Response, dated April 15, 2022; Uni-Tile's SRFI response, dated May 13, 2022 (collectively, Uni-Tile's RFI Responses).

³⁶ See March 25, 2022, RFI issued to Durian.

³⁷ See Memorandum to File, "Information Pertaining to Request for Information Inquiries," dated July 28, 2022 (RFI Receipts Memo) at Attachment 4.

³⁸ *Id.*

³⁹ See Kingway's RFI Response, dated April 8, 2022; Kingway's SRFI Response, dated May 10, 2022; and Kingway's Second SRFI Response, dated June 9, 2022 (collectively, Kingway's RFI Responses).

⁴⁰ See March 25, 2022, RFI issued to Lonlas.

⁴¹ See RFI Receipts Memo at Attachment 5.

⁴² *Id.*

Maika'i

CBP issued an RFI to Maika'i on March 25, 2022, with a response due by April 8, 2022.⁴³ While Maika'i's response was filed timely, it was rejected for improper bracketing.⁴⁴ On April 29, 2022, CBP provided Maika'i another opportunity to submit its response to the RFI. Maika'i was advised that failure to respond would result in the application of adverse inferences.⁴⁵ Maika'i did not submit a response.

Top Kitchen

CBP issued an RFI to Top Kitchen on March 25, 2022, with an April 8, 2022, due date.⁴⁶ Top Kitchen did not submit a response by the deadline. On April 14, 2022, CBP issued a RFI to Top Kitchen's address in Malaysia, via FedEx and via email, with a deadline of April 22, 2022.⁴⁷ Top Kitchen was advised that failure to respond would result in the application of adverse inferences.⁴⁸ Again, Top Kitchen did not submit a response.

MSW Companies

CBP issued separate RFIs to South Wales, LLWF, and MSW on March 25, 2022, with an April 8, 2022, due date.⁴⁹ The MSW Companies did not submit a response by the deadline. On April 14, 2022, CBP issued separate RFIs to South Wales, LLWF, and MSW's addresses in Malaysia, via FedEx and via email, with a deadline of April 22, 2022.⁵⁰ The MSW Companies were advised that failure to respond would result in the application of adverse inferences.⁵¹ Again, the MSW Companies did not submit a response.

Voluntary Submission of Factual Information

On June 21, 2022, importers Uni-Tile and Kingway submitted timely voluntary factual information.⁵²

Written Arguments

On August 1, 2022, CBP extended the statutory deadline to submit the written arguments and the responses until August 11, 2022, with responses to written arguments due August 26, 2022.⁵³ On August 11 and 16 2022, the Alleger, Uni-Tile, and Kingway submitted timely written

⁴³ See March 25, 2022, RFI issued to Maika'i.

⁴⁴ See Email to Maika'i, dated April 29, 2022.

⁴⁵ *Id.*

⁴⁶ See March 25, 2022, RFI issued to Top Kitchen.

⁴⁷ See RFI Receipts Memo at Attachment 6.

⁴⁸ *Id.*

⁴⁹ See March 25, 2022, RFIs issued to South Wales, LLWF, and MSW.

⁵⁰ See RFI Receipts Memo at Attachments 1 – 3.

⁵¹ *Id.*

⁵² See "Voluntary Submission of Factual Information-EAPA Consolidated Case Number 7673 Uni-Tile & Marble, Inc.," dated June 21, 2022 (Uni-Tile's VFI Submission); "Voluntary Submission of Factual Information EAPA Case Number 7673 Kingway Construction Supplies, Inc.," dated June 21, 2022 (Kingway's VFI Submission).

⁵³ See "Memorandum to File, "Information Pertaining to Written Arguments and Request for Information Inquiries Extensions," dated July 28, 2022, at Attachment 1.

arguments.⁵⁴ On August 26 and August 31, 2022, the Alleger and Kingway submitted timely written rebuttal arguments.⁵⁵

Uni-Tile's Arguments

Uni-Tile contends that it did not evade the *Orders* because Uni-Tile reasonably understood South Wales produced WCV in a factory in Malaysia. According to Uni-Tile, the information provided in the allegation, such as the South Wales website, the Experian Report on South Wales, Foreign Market Researcher (FMR) report, and the import statistics, does not constitute substantial evidence that Uni-Tile evaded the *Orders*.⁵⁶ In particular, Uni-Tile argues that the FMR report is inaccurate and relies on hearsay that Mr. Feng {a MSW employee} is involved in transshipment at MSW.⁵⁷ Uni-Tile reports that when questioning South Wales about raw material and packaging information submitted in the CF28 responses, South Wales claimed that it “only produced WCV sold to Uni-Tile and to Maika’i.”⁵⁸ Uni-Tile also asserts that the South Wales Managing Director told Uni-Tile officials that he was not aware, until this EAPA investigation, of any shipments to companies other than Uni-Tile and to Maika’i nor of any other documentation related to shipments using South Wales’ name.⁵⁹ Uni-Tile further asserts that the South Wales Managing Director “met Huang Jianmin {owner of MSW} approximately 12 years ago in setting up South Wales in 2018-2019.”⁶⁰

According to Uni-Tile, its CF28 response also does not contain substantial evidence that Uni-Tile is evading the *Orders*. Uni-Tile contends that CBP made the following errors when reporting on the CF28’s deficiencies in the NOI and provides a response on behalf of South Wales to these deficiencies:

- CBP reported that the photographs submitted by Uni-Tile of South Wales’ production equipment in Malaysia appeared to be staged due to the random placement of the machines among different pallets and the lack of space around the machines. Uni-Tile states that employees at the South Wales factory will work on standardized sets of WCV parts before delivering those WCV parts to the next department.⁶¹
- CBP reported that the photographs submitted by Uni-Tile of South Wales’ production equipment do not show wood debris or dust collection equipment. Uni-Tile states that it provided new photographs of the South Wales factory that show dust collection machines.⁶²

⁵⁴ See, “Investigation Concerning the Evasion of Antidumping And Countervailing Duty Orders Written Comments,” dated August 11, 2022 (the Alleger’s Written Arguments); “Written Arguments EAPA Case Number 7673 Kingway Construction Supplies, Inc.,” dated August 11, 2022 (Kingway’s Written Arguments); and “Amended Response to Extension of Written Argument Deadline August 11, 2022, Information on behalf of Uni-Tile & Marble EAPA Consolidated Case No. 7673,” dated August 16, 2022 (Uni-Tile’s Written Arguments).

⁵⁵ See “Investigation Concerning the Evasion of Antidumping and Countervailing Duty Orders Rebuttal Comments,” dated August 26, 2022 (the Alleger’s Rebuttal Arguments); “Response to Written Arguments (Revised) EAPA Case Number 7673 Kingway Construction Supplies, Inc.,” dated August 31, 2022 (Kingway’s Rebuttal Arguments).

⁵⁶ See Uni-Tile’s Written Arguments at 8 – 13.

⁵⁷ *Id.* at 10 – 11.

⁵⁸ *Id.* at 11; Uni-Tile’s VFI Submission at 6. As detailed in the NOI, CF28 information on the record shows that South Wales exported to 6 different companies.

⁵⁹ *Id.* at 11.

⁶⁰ *Id.* at 11. As detailed in the NOI, CBP obtained information from the [name] that indicates that “Ng Jia Hui” is a director of South Wales, but Huang Jianmin is not listed as a director.

⁶¹ *Id.* at 18 – 19.

⁶² *Id.* at 19 – 20; Uni-Tile’s VFI Submission at Exhibit 5.

- CBP reported that Uni-Tile and South Wales did not include production capacity information as requested in the CF28. Uni-Tile states that it included capacity information for the South Wales factory machines in a subsequent submission.⁶³
- CBP reported that Uni-Tile and South Wales did not include the timecards for the entire time production period as requested in the CF28. Uni-Tile states that it included timecard information for the South Wales factory machines in a subsequent submission.⁶⁴
- CBP reported that Uni-Tile and South Wales did not submit certain employee's timecard information in the CF28 response. Uni-Tile states that it included the individual's timecard in a subsequent submission.⁶⁵
- CBP reported that multiple Importers submitted the same invoices for raw materials for different work orders over a three-month period. Uni-Tile states that according to South Wales's Managing Director, South Wales only produced and sold WCV to Uni-Tile and Maika'i. Additionally, Uni-Tile states that South Wales indicated that raw materials have been purchased in response to several orders and that raw materials purchasing records will not tie directly to the sales orders for Uni-Tile. Uni-Tile also included additional raw material invoices work orders in a later submission.⁶⁶
- CBP reported that Uni-Tile and South Wales did not submit all import documentation for third country raw material purchases in the CF28 response as requested. Uni-Tile states that it included additional information regarding raw material purchases in a subsequent submission.⁶⁷

Kingway's Arguments

According to Kingway, [company] is located in Malaysia and no evasion exists.⁶⁸ Kingway contends the production of its covered merchandise took place in Malaysia because:

- Photographs of production, descriptions of the manufacturing process, as well as detailed employee timecards and raw material purchases, reflect substantial operations, whereas a transshipping operation would not employ many workers or purchase significant raw materials.⁶⁹
- The lead time for production at South Wales is much longer from a WCV factory in China, which indicates the Malaysian factory was not as experienced or as efficient as a Chinese factory, and that Malaysia is a more remote location for ocean shipping.⁷⁰
- The quality of the Malaysian WCV is slightly inferior and varied more so than Chinese products due to the establishment of a new Malaysian factory and the training of new workers in Malaysia.⁷¹
- The production of WCV in Malaysia is more expensive than in China.⁷²

⁶³ See Uni-Tile's Written Arguments at 20 – 21; Uni-Tile's VFI Submission at Exhibit 4.

⁶⁴ *Id.* at 21; Uni-Tile's VFI Submission at Exhibits 5A – 5E.

⁶⁵ *Id.* at 21 – 22; Uni-Tile's VFI Submission at Exhibit 7.

⁶⁶ *Id.* at 22 – 24; Uni-Tile's VFI Submission at Exhibits 8 and 9A.

⁶⁷ *Id.* at 24; Uni-Tile's VFI Submission at Exhibit 8.

⁶⁸ See, generally, Kingway's Written Arguments; Kingway's Rebuttal Arguments.

⁶⁹ *Id.* at 8 – 15, 19 – 20, citing Kingway's CF28 Response.

⁷⁰ *Id.*

⁷¹ *Id.* at 19.

⁷² *Id.*

- [place] supplies many other U.S. cabinetry businesses and is well-recommended.⁷³
- The record contains contact information for [place] including its address, website and phone number, as well as its registration information, ownership and executive leadership information.⁷⁴

Kingway argues it obtained satellite imagery indicating the location of the current and previous [place] manufacturing facilities, which supports a finding that the manufacturer is a legitimate long-time Malaysian producer.⁷⁵ Kingway maintains [place] old address is [address] and its new address as of May 2021 is [address].⁷⁶ Kingway posits that photographs of the outside of the factory tie to the satellite imagery.⁷⁷

Kingway claims that it exercised reasonable care in determining the country of origin of the covered merchandise.⁷⁸ According to Kingway, it relied upon [name] who contacted Kingway and informed it of factories which can produce WCV in Malaysia.⁷⁹ Kingway asserts that [name] assisted Kingway in finding a new factory, [place], because [name] wanted new clients for his logistics business.⁸⁰ Kingway contends [name] invited Kingway personnel to visit [place] in Malaysia, but Kingway personnel were unable to travel to Malaysia due to COVID-19 travel restrictions.⁸¹ Kingway argues that, because it could not visit the factory, [name] provided Kingway certificates of origin and photographs of the factory.⁸² Kingway maintains that in normal times it would have made an in-person visit to the supplier, but these are not normal times, and “reasonable care” must necessarily shift to take into account these unusual times.⁸³ Kingway posits that it requested information from the supplier before, and during, the negotiation process pertaining to [place] operations, asking reasonable questions and reviewing the documents provided to confirm the country of origin.⁸⁴

Kingway asserts that it took steps most other WCV importers would not take in exercising reasonable care in determining the country of origin of the covered merchandise, such as:

- Ordering samples from [place] to conduct quality checks prior to placing actual orders;
- Requesting direct local contacts in Malaysia at the factory;

⁷³ *Id.*

⁷⁴ *Id.* at 8, citing Kingway’s VFI Submission at “Supplier Report.”

⁷⁵ *Id.* at 16 – 18.

⁷⁶ *Id.*

⁷⁷ *Id.*

⁷⁸ *Id.* at 6.

⁷⁹ *Id.*

⁸⁰ *Id.*; Kingway’s Rebuttal Arguments at 6.

⁸¹ See Kingway’s Written Arguments at 7; Kingway’s Rebuttal Arguments at 6 – 7.

⁸² *Id.*, citing, *generally*, Kingway’s RFI Response, Kingway’s SRFI Response, and Kingway’s Voluntary Factual Information.

⁸³ See Kingway’s Written Arguments at 7.

⁸⁴ *Id.*; Kingway’s Rebuttal Arguments at 7.

- Requesting production documents, certificates of origin, photographs of the production process, raw material records, employee timecards, and verifying payment to Malaysia.⁸⁵

Kingway contends it knows the WCV industry and how those products are sold, but is not an expert on all phases of production, which is why it followed the reasonable care mandate of CBP and retained an expert, its Customs broker.⁸⁶ Kingway maintains it expected that its broker, an expert recognized and licensed by CBP, to inform Kingway whether AD/CVD cash deposits would be required.⁸⁷ According to Kingway, it did not believe AD/CVD would be applicable to its imports of WCV, and its assumption was not contradicted by the broker.⁸⁸ Kingway asserts it is an entirely innocent party who was acting in good faith, and believes that the WCV were actually manufactured in Malaysia.⁸⁹ Kingway requests that the EAPA investigation against it be immediately terminated, and that Kingway be found to not have engaged in any evasion.⁹⁰

Kingway claims it was unaware of any claims by Ark Trans that it engaged in transshipment and duty evasion.⁹¹ In addition, Kingway claims it is not associated with Ark Trans in any way, and is not related to Ark Trans, and thus, there is no record information which could sustain a statement that Ark Trans' alleged evasion can be attributed to Kingway.⁹²

Kingway argues it has taken its responses to CBP's requests seriously and provided to the best of its ability all of the information requested, despite the information sought by CBP not being germane to the investigation.⁹³ Kingway submits that the record is full and complete, and no additional factual information is necessary for CBP to make its determination.⁹⁴ Kingway maintains it should not be treated like the other parties to the investigation who have failed to cooperate with CBP.⁹⁵ Therefore, according to Kingway, any application of adverse inferences should not apply to Kingway.⁹⁶

Alleger's Arguments

The Alleger contends that the Importers, including Kingway and Uni-Tile, entered covered merchandise without declaring it as such.⁹⁷ The Alleger described the detailed information it provided in the allegations which indicate the Importers entered Chinese-origin WCV without the payment of AD/CVD duties.⁹⁸ The Alleger maintains that the Importers' CF28 responses contained multiple discrepancies and were incomplete.⁹⁹ As examples, the Alleger asserts that the pictures that South Wales provided of its alleged production facility in Malaysia appeared staged, that employee timecards were incomplete and had been altered, and that documents

⁸⁵ See Kingway's Written Arguments at 18, 20.

⁸⁶ *Id.* at 7 – 8; Kingway's Rebuttal Arguments at 7.

⁸⁷ See Kingway's Written Arguments at 7 – 8; Kingway's Rebuttal Arguments at 7.

⁸⁸ *Id.*; Kingway's Rebuttal Arguments at 7.

⁸⁹ *Id.*; Kingway's Rebuttal Arguments at 7 and 15.

⁹⁰ *Id.* at 9.

⁹¹ *Id.* at 12.

⁹² *Id.*

⁹³ *Id.* at 10.

⁹⁴ *Id.*

⁹⁵ *Id.* at 14.

⁹⁶ *Id.* at 15.

⁹⁷ See the Alleger's Written Arguments at 1; the Alleger's Rebuttal Arguments at 1.

⁹⁸ *Id.* at 2, citing the Allegations; the Alleger's Rebuttal Arguments at 4 – 5.

⁹⁹ *Id.* at 3; the Alleger's Rebuttal Arguments at 5 – 6.

purporting to show the purchases of raw materials and packing materials were incomplete or were suspicious because the same documentation was provided for multiple orders.¹⁰⁰ The Alleger notes that CBP made site visits to the locations of LLWF, MSW, and South Wales.¹⁰¹ The Alleger also notes that at the MSW site there was no one present at the gate, no manufacturing activity could be heard, and there was no visible sign of any activity.¹⁰² The Alleger remarks that, at the first LLWF and South Wales site, CBP could not find a building corresponding with the address, and at the second address it appeared South Wales no longer resided at that building.¹⁰³ The Alleger described the information concerning Ark Trans' evasion schemes placed on the record by CBP.¹⁰⁴ According to the Alleger, because the Malaysian manufacturers which supplied the Importers, LLWF, MSW and South Wales, did not respond to their RFIs, and because four of the six importers did not respond to their RFIs, CBP should apply adverse inferences to these companies.¹⁰⁵

Moreover, the Alleger argues it is doubtful that Kingway had no inkling of the evasion activity taking place given the open nature of the evasion scheme as advertised on [**name**] website, and as freely discussed by [].¹⁰⁶ The Alleger asserts that even a small amount of diligence would have uncovered the evasion scheme to Kingway. The Alleger argues that whether the Importers knew or should have known that the WCV were produced in China is irrelevant because they all made false statements to CBP when they declared that the WCV were produced in Malaysia. The Alleger notes that EAPA does not have a knowledge requirement for evasion as defined under 19 CFR 165.1, and thus, there is no requirement that the importer know of the material or false statement.¹⁰⁷ For the foregoing reasons, the Alleger contends CBP should reach an affirmative determination of evasion in this investigation.

ANALYSIS

Under 19 USC 1517(c)(1)(A), to reach a determination as to evasion, CBP must “make a determination, based on substantial evidence, with respect to whether such covered merchandise entered into the customs territory of the United States through evasion.” Evasion is defined as “the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the merchandise.”¹⁰⁸ The record of this investigation contains substantial evidence supporting a determination that covered merchandise entered the United States through evasion, resulting in the avoidance of applicable AD/CVD deposits or other security.

¹⁰⁰ *Id.*; the Alleger's Rebuttal Arguments at 5 – 6.

¹⁰¹ See the Alleger's Rebuttal Arguments at 5 – 6, citing the NOI at 15 – 16.

¹⁰² *Id.*, citing the NOI at 15.

¹⁰³ *Id.* at 7, citing the NOI at 16.

¹⁰⁴ See the Alleger's Written Arguments at 5; the Alleger's Rebuttal Arguments at 2 – 3.

¹⁰⁵ *Id.* at 6 – 7.

¹⁰⁶ See the Alleger's Rebuttal Arguments at 2.

¹⁰⁷ *Id.* at 4.

¹⁰⁸ See 19 CFR 165.1.

Trade Data

In December 2022, CBP received from the [name] import and export data for the [name] (Trade Data Memo) that it placed on the record.¹⁰⁹ The data showed that the [name] regularly imported [product] throughout the period of investigation (POI).¹¹⁰ Specifically, the [name] imported [product] from [name] located in China and classified under HTS [#]. This is the same HTS number that the [name] exported to the United States.¹¹¹

The WCV imported from Malaysia during the POI by the Importers and entered into the United States meet the definition of covered merchandise under the *Orders*:

“Subject merchandise includes the following wooden component parts of cabinets and vanities: (1) wooden cabinet and vanity frames (2) wooden cabinet and vanity boxes (which typically include a top, bottom, sides, back, base blockers, ends/end panels, stretcher rails, toe kicks, and/or shelves), (3) wooden cabinet or vanity doors, (4) wooden cabinet or vanity drawers and drawer components (which typically include sides, backs, bottoms, and faces), (5) back panels and end panels, (6) and desks, shelves, and tables that are attached to or incorporated in the subject merchandise.

Subject merchandise also includes wooden cabinets and vanities and in-scope components that have been further processed in a third country, including but not limited to one or more of the following: trimming, cutting, notching, punching, drilling, painting, staining, finishing, assembly, or any other processing that would not otherwise remove the merchandise from the scope of the order if performed in the country of manufacture of the in-scope product.”¹¹²

In fact, the [name] imported more [product] than they exported to [name] in the United States. For calendar years 2021 and 2022, South Wales’ imports from [place] and exports to [place] of [product] are nearly identical, with the exports being fewer than [#] than the imports.¹¹³ Further, CBP identified certain [place] import shipments of [product] from [place] that match the [place] export shipments to the United States. As shown in Attachment 1, CBP found [#] sets of shipments involving Uni-Tile, [#] sets involving Durian, [#] sets involving Kingway, [#] sets involving Lonlas, [#] sets involving Maika’i, and [#] sets involving Top Kitchen. Each of these sets are matched on a basis of [description].

¹⁰⁹ See CBP Memorandum to the File, dated July 27, 2022 (Trade Data Memo).

¹¹⁰ *Id.* at Attachment 1. The POI for this investigation starts November 9, 2020 through the pendency of this investigation.

¹¹¹ *Id.*

¹¹² See the *Orders*.

¹¹³ *Id.* [description]

Additionally, record evidence shows that importers [**names**] previously imported WCV from [**product**].¹¹⁴ Likewise, record evidence shows that [**name**] previously imported WCV from [**product**], and [**name**] previously imported from [**product**].¹¹⁵ The table in Attachment 1 shows each of these importers, [**names**], purchasing from [**product**] but this time with a MSW company as a middleman. This trade data shows that [**companies**] continue to purchase WCV from their original Chinese suppliers. Thus, the fact that [**companies**] continued to purchase the same type of products from [**product**], but only added the Malaysian companies to act as mere intermediaries after AD/CV duties became due demonstrates [**companies**] deliberate attempt to conceal its connection to [**product**].

Additionally, the trade data received from the [**name**] directly refutes the evidence presented in Uni-Tile's and Kingway's RFI responses. CBP was able to trace the export shipments from [**companies**] to [**place**], which were then re-exported to [**companies**] during the POI. The following shipments demonstrate that China is the ultimate country of origin for the WCV shipped by South Wales to Uni-Tile and Kingway:

- On [**description**]. On [**date and products description**]. This quantity [**description**] in Uni-Tiles' RFI response for entry number [**#**]8074, with a reported packing date of [**date**], export date of August 21, 2021, and an import date of September 25, 2021.¹¹⁶
- On [**description**]. On [**date and description description**]. This quantity [**description**] in Uni-Tiles' RFI response for entry number [**#**]5739, with a reported packing date of [**date**], export date of February 25, 2021, and an import date of April 3, 2021.¹¹⁷
- On [**date and description**]. On [**date and numbers description**]. This quantity [**description**] in Uni-Tiles' RFI response for entry number [**#**]9022, with a reported packing date of [**date**], export date of January 7, 2021, and an import date of February 15, 2021.¹¹⁸

After reviewing all evidence on the record—namely, the facts that the [**company**] purchased such a [**description**] during the POI, that a

¹¹⁴ See Uni-Tile's and Kingway's NTAC Report, dated December 3, 2021.

¹¹⁵ See Uni-Tile's, Durian's, and Kingway's NTAC Report, dated December 3, 2021

¹¹⁶ *Id.*; Uni-Tile's RFI response at Exhibit 5.

¹¹⁷ *Id.*; Uni-Tile's RFI response at Exhibit 6.

¹¹⁸ *Id.*; Uni-Tile's RFI response at Exhibit 6.

large volume of the [**company**] U.S. sales are to the Importers, and that there is no reliable information on the record that the [**company**] actually have an operational WCV production facility in Malaysia—CBP finds that there is substantial evidence on the record that indicates that the Importers entered WCV from China, via transshipment through Malaysia, into the customs territory of the United States through evasion. Additionally, CBP finds that certain information submitted by Uni-Tile and Kingway in their RFI responses is patently false.

South Wales and LLWF Location and Facilities

Importers Uni-Tile and Kingway argue that South Wales and LLWF exist as a factory in Malaysia.¹¹⁹ Kingway also argues that it provided corporate information with respect to [**place**].¹²⁰ Both importers provided pictures of the alleged [**place**] factory and of factory equipment.¹²¹ Overall, CBP does not find these arguments persuasive due to the magnitude of inconsistencies and false information provided.

CBP received corporate information from [**name**] and the Importers identifying South Wales and LLWF.¹²² These documents indicated that South Wales and LLWF registered the nature of their businesses as [**product description**] and [**product description**], respectively. Kingway maintains that because it provided corporate information with respect to [**place**], this indicates it manufactured WCV in Malaysia.¹²³ We find this corporation information only indicates that [**place**] and [**name**] are companies registered in Malaysia. While the business registration documents indicate the activities of these companies are the “manufacturing and trading of household furniture of all variety {sic}” and [“ **product description** ”], CBP requires RFI responses directly from the manufacturers to determine whether they were actually engaged in the manufacturing of WCV during the period of investigation.¹²⁴ As such, while manufacturing is an activity these companies may participate in, [**place**] submitted no record evidence that they engaged in this activity. Additionally, without further record evidence to back up the claims of manufacturing, there is no reasonable expectation that CBP should believe that [**place**] and [**place**] are more likely to be manufacturing firms than trading/exporting and importing firms.

Conflicting record evidence exists regarding the location of South Wales and LLWF. [**name**] business registration from [**place**] and evidence submitted by the Importers indicated that South Wales and LLWF are currently located at PT 11929, JLN

¹¹⁹ Both Uni-Tile and Kingway indicate that the factory and production information submitted pertains to South Wales and LLWF; none of the Importers has provided evidence that MSW is capable of producing WCV. *See, generally*, Uni-Tile’s RFI Response; Uni-Tile’s VFI submission; Uni-Tile’s Written Arguments; Kingway’s RFI Response; Kingway’s VFI Submission; Kingway’s Written Arguments; Kingway’s Rebuttal Arguments.

¹²⁰ *See, generally*, Kingway’s RFI Response; *generally*, Kingway’s VFI Submission, Kingway’s Written Arguments, and Kingway’s Rebuttal Arguments.

¹²¹ *See* the photographs submitted in the Importers’ CF 28 responses (Importers CF28 photos); Uni-Tile’s RFI response at Exhibit 5, photo pages 1 – 4, and Exhibit 6, photo pages 1 – 4; Uni-Tile VFI submission at Attachment A, Exhibit 6, Master pages 60 – 68 (Uni-Tile VFI photos); and Kingway’s VFI Submission at pages 4 – 9 (Kingway VFI photos).

¹²² *See* Malaysian Companies Memo at Attachment 1.

¹²³ *See* Kingway’s Written Arguments at 8.

¹²⁴ *See* Malaysian Companies Memo at Attachment 1.

Perajurit, KG Telok Gong, Pelabuhan Klang, Selangor, 42000 (PT 11929 Address).¹²⁵ The Importers submitted information showing that South Wales moved and changed its address from No. 2, Jalan Semenyih Permata Utama, Taman Semenyih Permata, 435000 (No. 2, Jalan Address) in May 2021.¹²⁶ However, record evidence shows that South Wales has been using the No. 2, Jalan Address well past the May 2021 moving date. Specifically, for entry [**#**]8074, Uni-Tile submitted a commercial invoice and packing list to CBP that shows South Wales' address is the [**address**]. The commercial invoice and packing list are dated August 18, 2021, [**number**].¹²⁷ Additionally, Uni-Tile and Durian submitted Certificate of Origins from the Malaysian Government that indicate that No. 2, Jalan Address as the container stuffing and manufacturing addresses, dated August 20, 2021, and October 10, 2021, respectively.¹²⁸ If South Wales moved from this location in May 2021, and the Importers were aware of this move, the Importers, particularly [**companies**], submitted false information to CBP on their [**name**].¹²⁹ Moreover, the continued use of this address on [**address**] indicates South Wales continues to provide false information to the [**description**] on its entries of Chinese-origin WCV.¹³⁰

As noted in the NOI and in the "Preliminary Onsite Visits in Malaysia" section above, CBP conducted three site visits, to attempt to understand the conflicting record information on the locations of South Wales and LLWF (CBP also visited MSW's address). CBP found that the MSW Companies are not located at the PT 11929 Address and that the address on Google Maps is incorrect, *i.e.*, that this is not the address Google Maps purports it to be. With respect to the 2 Jalan Address, in January 2022, CBP found that there was a sign on the front of the building which contained South Wales' name, but that the name of the company had been removed.¹³¹ Put differently, the paint under the South Wales' lettering was less faded than the paint exposed to the sun, enabling anyone to read the name of the company at this address.¹³² In sum, CBP finds that its site visits to the No. 2 Jalan Address and the PT 11929 address indicate South Wales and LLWF operate at neither location.

All of the Importers submitted pictures that claim to be of the outside of the [**companies**] factory.¹³³ Both Kingway and Uni-Tile submitted additional pictures claiming to be the outside and inside of the factory.¹³⁴ However, because South Wales and LLWF did not answer the RFI requests, CBP cannot verify that these pictures are accurate; therefore, CBP cannot rely on them as proof of a factory at South Wales or LLWF's claimed address. Specifically, Kingway submitted Google screenshots of the ariel view of the PT 11929 Address, claiming that this screenshot was "third-party outside imagery" establishing the existence of the factory in Malaysia.¹³⁵ CBP refutes that this screenshot is evidence sufficient to legitimize South Wales or LLWF's existence. Kingway claims that this screenshot depicts South Wales' address; however, the screenshot indicates that this is the address for LLWF, and South Wales is not

¹²⁵ *Id.*

¹²⁶ See Importers' CF28 Responses.

¹²⁷ See Uni-Tile's RFI Response at Exhibit 5.

¹²⁸ *Id.*; Durian's CF28 Response.

¹²⁹ See Kingway's NTAC Report.

¹³⁰ See Trade Data Memo.

¹³¹ See CBP Site Visit Memo.

¹³² *Id.*

¹³³ See Importers' CF28 responses

¹³⁴ See Kingway and Uni-Tile's RFI responses and VFI Submissions.

¹³⁵ See Kingway' VFI Submissions and Written Arguments.

mentioned. Second, CBP notes that LLWF's location is pinned on the street, while another business is pinned onto a building adjacent to LLWF's location. According to the screenshot provided by Kingway, LLWF's location does not have a building associated with the address, and the location closest to LLWF's pinned location is claimed by another business. In addition, for Google Maps, business information and location can be submitted by the businesses or individuals themselves; there is no indication that Google or any other company verified that LLWF's exists at this location. Lastly, as described above, CBP conducted a site visit and found that the PT 11929 Address did not have a WCV factory operating at that location.¹³⁶

Uni-Tile and Kingway claim that production photographs on the record indicate that [**place**] can manufacture WCV in Malaysia.¹³⁷ The Importers submitted multiple sets of photographs during the investigation, notably the Importers' CF28 photos, Uni-Tile RFI photos, Uni-Tile VFI photos, and Kingway VFI photos.¹³⁸ However, CBP finds that these four sets of photographs provide contradictory information; therefore, CBP cannot rely on these images to confirm [**place**]'s ability to produce WCV in Malaysia. As described below, CBP finds that these four sets of pictures show inconsistencies in the production layout, manufacturing equipment, in the operation of equipment, and dress code.

As described in the NOI, CBP noted that the production equipment appears to be staged due to the random placement of the machines among different pallets. The additional sets of images submitted does not offer greater clarity because these images do not conform to production process descriptions given by the Importers on behalf of [**place**]. For example, Kingway's VFI photos and Importers' CF28 photos show the [**product description**] near the [**product description**

[**product description**]. However, the Importers' CF28 responses describe the manufacturing process as using the [**description**] in the second step of production and the [**description**] in the fifth step of the process; these steps are separated by other large machines meant to perform the grooving and banding processes. Also, the order of production equipment photos presented in the Importers' CF28 photos and Uni-Tiles VFI photos separates the [**product**] and the [**product**] by a [**name**] and/or a [**name**] machine. There is no record evidence provided by the Importers or [**place**] to explain why these machines are in different production layout positions than what is described in either the manufacturing process or the production equipment list. To add further ambiguity, when examining Uni-Tile's RFI photos, CBP cannot positively identify the positioning of the [**product**] and the [**product**] as matching the other three sets of photographs, all of which were undated. Given the contradictory information regarding production layout and production process, CBP cannot rely on these sets of photos as evidence of [**place**] production capabilities in Malaysia.

Furthermore, the four sets of pictures do not show the same equipment. CBP notes that two different machines are included in the Uni-Tile VFI photos and the Kingway RFI photos. In the Uni-Tile VFI photos, Uni-Tile submitted a photo of a round corner edge banding machine; this

¹³⁶ See CBP Site Visit Memo.

¹³⁷ Uni-Tile and Kingway indicate that the photos submitted are evidence that [**place**] can manufacture WCV and not [**place**]. See, generally, Uni-Tile written arguments; Kingway's Written Arguments.

¹³⁸ See the photographs submitted in the Importers' CF 28 responses (Importers CF28 photos); Uni-Tile's RFI response at Exhibit 5, photo pages 1 – 4, and Exhibit 6, photo pages 1 – 4; Uni-Tile VFI submission at Attachment A, Exhibit 6, Master pages 60 – 68 (Uni-Tile VFI photos); and Kingway's VFI Submission at pages 4 – 9 (Kingway VFI photos).

piece of equipment does not appear in any of the other sets of submitted photographs or in the Importers' CF28 responses' production process descriptions. Likewise, Kingway includes a picture of a [**product**]¹³⁹ that again does not appear in any of the other sets of submitted photographs or in the Importers' CF28 responses' production process descriptions.¹⁴⁰ Further Kingway does not explain how this machine is used, its relation to the WCV production process, nor provide a description of the machine's capacity. CBP finds that by adding these new production machines, Uni-Tile and Kingway either withheld information from their CF28 responses or are inserting unnecessary equipment in their VFI submissions. Regardless of Uni-Tile or Kingway's reasons, CBP determines that the lack of consistency between submissions renders these sets of photographs unusable in determining if [**place**] is able to produce WCV in Malaysia. Additionally, CBP notes that Uni-Tile's RFI photos roughly show only six of the 11 pieces of equipment depicted in the Importers' CF28 photos; for example, the vertical multi-axis hinge boring machine is missing from Uni-Tile's RFI photos.¹⁴¹ CBP finds the lack of consistency between the Uni-Tile CF28 and RFI submissions to be substantial cause to disregard these photos.

CBP continues to find that the four sets of photos lack consistency in depicting the operation of certain equipment. In the Uni-Tile RFI photos and the Uni-Tile VFI photos, Uni-Tile highlights the dust and debris collection machines present in South Wales's alleged facility; however, only Uni-Tile's RFI photos show the presence of wood dust/debris. The inconsistency between these two sets of photos lies in the fact that both sets of photos appear to depict the manufacturing of WCV, but only one set of photographs depicts the actual byproduct of WCV production. For example, CBP notes that in the Uni-Tile RFI photos, an active [**description**] appears to have wood debris/dust surrounding the machine and covering the dust filtration system; however, the other three sets of photos¹⁴² show the same piece of equipment as being dust and debris free while in use. The fact that the majority of photos purport to show active manufacturing yet demonstrate none of the actual byproducts of the manufacturing process means that CBP cannot rely on these photos to accurately depict South Wales's and/or LFW's WCV production capabilities. Further, CBP finds there is a lack of consistency in the operation of the [**product description**], particularly among the Importers' CF28 photos, Uni-Tile RFI photos, and Kingway VFI photos. The Importers' CF28 photos and Kingway's VFI photos show an active [**product**] with two individuals (one on each end of the machine) operating the machine; whereas, the Uni-Tile RFI photos show only one person operating the machine with merchandise falling off the end of the machine. CBP finds the employees' lack of consistency when operating the [**product**] shows that the people in the photos are not demonstrating how to properly operate the equipment when compared to Uni-Tile's submitted descriptions of South Wales' WCV manufacturing process, thus further degrading that South Wales has the capacity to produce WCV.

¹³⁹ See Kingway VFI Submission at page 9, the bottom two photos.

¹⁴⁰ CBP notes that while this new machine looks similar to another machine provided in other submissions (see, Kingway VFI Submission at page 9, first photo, and Importers CF28 photos and Uni-Tile RFI photos at [**product**], the new [**product**] has different controls across the top bar of the machine and appears to be in a different location than the [**product**].

¹⁴¹ For clarity, CBP continues to find that the Uni-Tile RFI photos do not contain pictures of the two new machines depicted in the Uni-Tile VFI photos and the Kingway VFI photos.

¹⁴² See Importers CF28 photos; Uni-Tile VFI photos; Kingway VFI photos.

Another example of an inconsistency is the depiction of uniforms in the Uni-Tile RFI photos. In these photos, all the workers appear in uniform (red shirt, black pants, and closed toe shoes); whereas the Importers' CF28 photos, Uni-Tile VFI photos, and Kingway VFI photos show workers in mismatched clothes and open-toed shoes. Since these photographs lack consistency, CBP cannot rely on these photographs to provide evidence that South Wales is producing WCV in Malaysia. In sum, CBP acknowledges that production processes and company policies can change over time. However, absent any evidence as to the reasonable causes of these inconsistencies or changes in company policies, CBP cannot use these photographs to establish the legitimacy of South Wales's production capabilities in Malaysia.

While the inability of South Wales to provide a location for its manufacturing facility is troubling, had South Wales responded to its RFI, it is possible CBP could have conducted a verification of its RFI response and put to rest the issue of its location and production facilities.

Longer Lead Time and Quality Issues

Kingway makes contradictory claims as to [**place**] expertise in manufacturing WCV. Kingway asserts [**place**] is still learning how to manufacture WCV, and hence the quality is not as high a Chinese manufacturer of WCV.¹⁴³ However, in the same submission, Kingway argues that [**place**] is a "legitimate long time Malaysia{n} producer."¹⁴⁴ CBP notes the South Wales website indicates it has been manufacturing WCV for 10 years.¹⁴⁵ CBP also notes that the Malaysian government records indicate that South Wales was incorporated in 2019.¹⁴⁶

Given that the Malaysian members of the Ark Trans companies were all incorporated at about the same time, *i.e.*, 2019 and early 2020,¹⁴⁷ and that 2019 was the time when [**description**],¹⁴⁸ CBP finds it highly probable that South Wales began operations in 2019. Moreover, as discussed above, CBP does not believe these operations involved the manufacture of WCV, but rather Ark Trans uses South Wales as an intermediary or a trading company. CBP also finds that the longer lead time for ordering from Malaysia is not necessarily because Malaysia is more remote than China, or because [**place**] is still learning how to make WCV, but because [**place**] needs a few weeks to repackage Chinese-origin WCV and, to use an Ark Trans euphemism, "re-export" the WCV to the United States.¹⁴⁹

Kingway made several statements with respect to the quality of [**place**] products, the cost of production in Malaysia *versus* China, and [**place**] being a well-recommended company.¹⁵⁰ Other than these statements from Kingway, the record is silent with respect to these topics. Without any supporting record evidence, Kingway's statements are merely unsubstantiated assertions, and as a result, CBP cannot rely on the statements as evidence of actual manufacturing ability.

¹⁴³ See Kingway's Written Arguments at 19.

¹⁴⁴ *Id.* at 17.

¹⁴⁵ See Malaysian Companies Memo at Attachment 4.

¹⁴⁶ *Id.* at Attachment 1.

¹⁴⁷ *Id.*

¹⁴⁸ See Kingway's SRFI Response at 3.

¹⁴⁹ See Malaysian Companies Memo at Attachment 3, which contains Ark Trans' website and its description of "re-exporting" Chinese-origin WCVs.

¹⁵⁰ See Kingway's Written Arguments at 19.

Kingway argues that the lead time for the WCV ordered from Malaysia was much longer than when Kingway ordered WCV from China.¹⁵¹ Further, Kingway insists that these longer lead times reflect the fact that the Malaysian factory is not as experienced as the Chinese factory and it is more remote, in terms of shipping.¹⁵² We disagree with this contention. An examination of the trade data indicates that there is a [**time**] lag from the time [**companies**] import [**description**] into [**place**], and then these companies export the [**description**], which is most likely attributed to the repackaging of the WCV. To provide another Kingway-specific example different from the one described above, on [**date and numbers**

[**date and numbers**].¹⁵³ On [**date and numbers**],¹⁵⁴ The difference between these two dates (*i.e.*, the extra lead time), and the dates for the example described above, is about [**#**] weeks.

Reasonable Care and Ark Trans

As noted in the NOI and in the “Shenzhen Ark Cross-Border Logistics Co., Ltd.” section above, Ark Trans coordinates with and/or controls the MSW Companies and certain importers (Durian) under investigation. In a supplemental RFI, CBP asked questions about Kingway’s relationship with Ark Trans.

According to Kingway, in 2019, an individual in China, [**name**], contacted Kingway seemingly out of the blue, and informed Kingway that he knows of factories which can produce WCV in Malaysia.¹⁵⁵ Kingway argues [**name**] assisted Kingway in finding a new factory because [**name**] wanted new clients for his logistics business.¹⁵⁶ Kingway stated it felt that because the per unit cost was low, it did not believe it was necessary to verify [**name and product**].¹⁵⁷ While Kingway appears to have conducted some internet research as to the location of [**place**], Kingway failed to conduct any research whatsoever on [**name**]. We note [**name**] even provided Kingway with the web address for [**name**].¹⁵⁸ Record information indicates the [**name**] is not shy about discussing his company’s transshipment schemes, and admitted to [**description**

[**description**].¹⁵⁹ While Kingway argues it was unaware of Ark Trans’ activities, and that it is not associated with Ark Trans in any way,¹⁶⁰ given that [**name**] gave Kingway [**name**] web address (and the domain name is also in his email address), that [**product description**], and that the [**description**

[**description**], Kingway could have known about Ark Trans’ “re-exporting” activities, or made a better effort to gather more information as to where [**name**] sourced his WCV.

¹⁵¹ See Kingway’s Written Arguments at 18.

¹⁵² *Id.*

¹⁵³ See Trade Data Memo at Attachment 1.

¹⁵⁴ *Id.* at Attachment 2.

¹⁵⁵ See Kingway’s Second SRFI Response at 3.

¹⁵⁶ *Id.*

¹⁵⁷ *Id.* at 4.

¹⁵⁸ *Id.* at 3; Malaysian Companies Memo at Attachment 4.

¹⁵⁹ See, *e.g.*, Kingway Allegation at Exhibit 7.

¹⁶⁰ See Kingway’s Rebuttal Arguments at 12.

While Kingway claims it requested information from [**name**] before and during the negotiation process pertaining to its factory and operations and asked reasonable questions and reviewed documents,¹⁶¹ There is no evidence aside from these mere statements that demonstrate that Kingway engaged in any such due diligence efforts. There is neither record information that Kingway conducted these activities nor does Kingway cite to any such record evidence in its written arguments. For example, Kingway makes no mention of checking with [**name**] to see if [**names**] were the Malaysian companies [**names**] were using to transship Chinese-origin WCV. Kingway also provided no email correspondence with [**name**], which would show that it asked him any due-diligence related questions.¹⁶² As such, Kingway's claims are unsubstantiated assertions as to the actions it took.

Regarding Kingway's argument that it took more steps than other importers to verify the country of origin of its WCV CBP notes there is no record evidence that Kingway ordered samples from [**place**], nor does Kingway indicate how the samples would show the country of origin. While Kingway stated it requested "direct local contacts in Malaysia" there is no evidence it did this, and in its submissions, Kingway indicated it only communicated with [Mr. Huang in China].¹⁶³ While Kingway notes it requested production and product origin documents, it appears to have only done so once it was in receipt of a CF28 from CBP, and not before it began to make purchases from [**name**]. [**name**] even provided Kingway with [**name**] email address,¹⁶⁴ (which is listed publicly on its website), but Kingway provided no evidence it ever contacted [**name**] directly.

In addition, Kingway appears to be attempting to shift the responsibility in exercising reasonable care in determining the country of origin to its broker, [**name**]. [**name**] can only provide advice based on the information the importer provides, and according to Kingway, it provided [**name**] with bills of lading, commercial invoices, packing lists, product specifications and country-of-origin certificates.¹⁶⁵ These are the typically types of documents that would normally accompany an entry and do not rise above what would normally be required from a broker. Kingway makes no mention of alerting the broker to the fact that the sales were all [**description**], whose known [**description**]. While a broker may provide advice on AD/CVD matters based on the information provided to it, ultimately the importer is responsible for the payment of AD/CVD duties; therefore, it is the importer's responsibility to conduct due diligence, to include gathering information to determine the country of origin of the merchandise it imports.

Finally, CBP issued a CF28 to Kingway requesting information on an entry "manufactured" by MSW. In the NOI, CBP found that Kingway and MSW did not answer most CF28 questions, and that the few questions they attempted to answer contained demonstrably false information.¹⁶⁶ In addition, the production photographs submitted in Kingway's CF28 response were found to be

¹⁶¹ See Kingway's Written Arguments at 7.

¹⁶² In the NOI, CBP inadvertently stated that Kingway was one of the importers under investigation controlled by Ark Trans. See NOI at 17. The sentence should have stated that Durian was one of the importers controlled by Ark Trans.

¹⁶³ See Kingway's RFI Response at 13 – 15.

¹⁶⁴ See Kingway's Second SRFI Response at 9.

¹⁶⁵ See Kingway's RFI Response at 14 and 16.

¹⁶⁶ See, e.g., March 2, 2022, Memorandum at Attachment 1 (NOI EPA 7657 at 17 – 20).

that of another company and not MSW, and the photographs submitted in the CF28 depicted the production of a different product, quartz surface products, not WCV.

In sum, CBP does not agree with Kingway's arguments that its covered merchandise was of Malaysian origin, or that it exercised reasonable care in determining the country of origin. While Kingway argues it is an innocent party who was acting in good faith, EAPA does not have a culpability requirement necessary to find evasion. EAPA does not have a knowledge requirement for evasion as defined under 19 CFR 165.1, nor is there any requirement that an importer know of the material or false statement. In other words, whether an importer exercised reasonable care is irrelevant for the purposes of EAPA. Therefore, CBP does not need to determine any level of culpability, only that evasion occurred with entry. The evidence on the record does not support Kingway's assertions that the merchandise was made in Malaysia, rather substantial evidence on the record indicates the merchandise was manufactured in China and transshipped through Malaysia before being imported to the United States.

Adverse Inferences

CBP finds that Durian, Lonlas, Maika'i, Top Kitchen, MSW, LLWF, and South Wales failed to cooperate with this EAPA investigation by not acting to the best of the party or person's ability to comply with a request for information. As detailed above, Durian, Lonlas, Maika'i, Top Kitchen, MSW, LLWF, and South Wales failed to respond to CBP's March 25, 2022, requests for information, despite multiple requests and multiple opportunities to respond.¹⁶⁷ Additionally, the participation of MSW, LLWF, and South Wales, the reported manufacturers, through responses to CBP's RFIs, would have been crucial to CBP's analysis of source documents substantiating the production and the country of origin of the imported products. Such cooperation from MSW, LLWF, and South Wales would have helped to inform CBP's determination, but MSW, LLWF, and South Wales failed to act.

The RFIs issued to the Importers and manufacturers requested information relating to corporate structure, affiliations, accounting and financial documentation, and sales-specific order, sales, transport, and product details. Such records and documentation are critical for evaluating the validity of entry information provided by Importers and to determine the country of origin of the WCV. Neither importers Durian, Lonlas, Maika'i, Top Kitchen, nor the manufacturers MSW, LLWF, and South Wales submitted RFI responses. Pursuant to 19 USC 1517(c)(3) and 19 CFR 165.6, CBP may apply an adverse inference if the party to the investigation that filed an allegation, the importer, or the foreign producer or exporter of the covered merchandise fails to cooperate and comply to the best of its ability with a request for information made by CBP. In applying an adverse inference against an eligible party, CBP may also select from the facts otherwise available to make a final determination as to evasion pursuant to 19 USC 1517(c)(1)(A) and 19 CFR 165.27.¹⁶⁸

Moreover, an adverse inference may be used with respect to U.S. importers, foreign producers, and manufacturers "without regard to whether another person involved in the same transaction or transactions under examination has provided the information sought...."¹⁶⁹ There is no factual

¹⁶⁷ See, generally, RFI Receipts.

¹⁶⁸ See 19 CFR 165.6(a).

¹⁶⁹ See 19 USC 1517(c)(3)(B). While Uni-Tile attempted to remedy the deficiencies CBP found in its CF28 response, the only party that can remedy these deficiencies is South Wales. South Wales did not respond to the RFI, making Uni-Tile's assertions about South Wales' operation unsubstantiated.

basis for concluding that Durian, Lonlas, Maika'i, Top Kitchen, MSW, LLWF, and South Wales were unable to provide responses to CBP's RFIs. Therefore, due to the documented failure of Durian, Lonlas, Maika'i, Top Kitchen, MSW, LLWF, and South Wales to participate by responding to CBP's RFIs, CBP finds that Durian, Lonlas, Maika'i, Top Kitchen, MSW, LLWF, and South Wales did not cooperate to the best of their abilities in this EAPA investigation.¹⁷⁰ As a result, CBP has no evidence on the record that refutes the Alleger's evidence in the allegation that the Importers imported WCV from China -- aside from the inconsistencies present in the submissions, nor that refutes CBP's further research, as described above and in the NOI, that the imported WCV were transshipped from China through Malaysia.

In conclusion, the application of adverse inferences to the parties listed above, in conjunction with the evidence on the record—the pattern of re-exporting [**description**], misleading information about the addresses of the companies' manufacturing facilities, misrepresentation of the MSW Companies' manufacturing abilities, and the evasion scheme performed by Ark Trans—demonstrates that substantial evidence of evasion exists on the record supporting an finding of evasion with respect to the Importers under investigation.

DETERMINATION AS TO EVASION

The previously discussed facts on the record establish that there is substantial evidence that Chinese-origin WCV were imported into the United States by evasion, specifically via transshipment through Malaysia. Furthermore, evidence on the record indicates that the Importers entered the Chinese-origin WCV into the United States as type 01 entries and evaded the payment of AD/CVD duties on WCV from China, by misrepresenting the WCV as Malaysian origin.¹⁷¹ The WCV that the Importers entered from the MSW Companies during the period of investigation were subject to the AD/CVD rates on WCV from China.¹⁷²

ACTIONS TAKEN PURSUANT TO THE AFFIRMATIVE DETERMINATION OF EVASION

In light of CBP's determination that Uni-Tile & Marble, Inc., Durian Kitchen Depot Inc., Kingway Construction and Supplies Co., Inc., Lonlas Building Supply Inc., Maika'i Cabinet & Stone Inc., and Top Kitchen Cabinet Inc. entered covered merchandise into the customs territory of the United States through evasion, and pursuant to 19 USC 1517(d) and 19 CFR 165.28, CBP will suspend or continue to suspend the entries subject to this investigation until instructed to liquidate these entries. For those entries previously extended in accordance with the interim measures, CBP will rate adjust and change those entries to type 03 and continue suspension until instructed to liquidate these entries. CBP will also evaluate the Importers' continuous bonds in accordance with CBP's policies and may require single transaction bonds as appropriate. None of the above actions precludes CBP or other agencies from pursuing additional enforcement actions or penalties.

¹⁷⁰ Concerning Kingway's argument concerning adverse inferences, CBP has not applied adverse inferences to Kingway in this determination of evasion.

¹⁷¹ Entry type "01" is the code that CBP requires importers use to designate a standard consumption entry that is not subject to AD/CVD duties. See <https://www.cbp.gov/trade/automated/ace-transaction-details>.

¹⁷² The Importers' WCV entries are subject to the "China-Wide Entity" rate of 251.64 percent for AD case A-570-106 and the "All-Others" rate of 20.93 percent for CVD case C-570-107. These two rates equal a combined rate of 272.57 percent. See the *Orders*.

Sincerely,

A handwritten signature in black ink, appearing to read "Brian M. Hoxie". The signature is fluid and cursive, with the first name "Brian" being the most prominent.

Brian M. Hoxie
Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
Office of Trade

ATTACHMENT

Table 1: Uni-Tile's WCV Imports

Date	Country Of Origin	Exporter	Country Of Destination	Importer	HTS	Cargo Description	First Unit of Measurement		Second Unit of Measurement	
							Quantity	Unit	Quantity	Unit
			description and numbers							

Date	Country Of Origin	Exporter	Country Of Destination	Importer	HTS	Cargo Description	First Unit of Measurement		Second Unit of Measurement	
							Quantity	Unit	Quantity	Unit

description and numbers

Date	Country Of Origin	Exporter	Country Of Destination	Importer	HTS	Cargo Description	First Unit of Measurement		Second Unit of Measurement	
							Quantity	Unit	Quantity	Unit
			description and numbers							

Date	Country Of Origin	Exporter	Country Of Destination	Importer	HTS	Cargo Description	First Unit of Measurement		Second Unit of Measurement	
							Quantity	Unit	Quantity	Unit
			description and numbers							

Date	Country Of Origin	Exporter	Country Of Destination	Importer	HTS	Cargo Description	First Unit of Measurement		Second Unit of Measurement	
							Quantity	Unit	Quantity	Unit
				description and numbers						

Date	Country Of Origin	Exporter	Country Of Destination	Importer	HTS	Cargo Description	First Unit of Measurement		Second Unit of Measurement	
							Quantity	Unit	Quantity	Unit
			description and numbers							

[illegible]

Date	Country Of Origin	Exporter	Country Of Destination	Importer	HTS	Cargo Description	First Unit of Measurement		Second Unit of Measurement	
							Quantity	Unit	Quantity	Unit
			description and numbers							

Date	Country Of Origin	Exporter	Country Of Destination	Importer	HTS	Cargo Description	First Unit of Measurement		Second Unit of Measurement	
							Quantity	Unit	Quantity	Unit

description and numbers

Date	Country Of Origin	Exporter	Country Of Destination	Importer	HTS	Cargo Description	First Unit of Measurement		Second Unit of Measurement	
							Quantity	Unit	Quantity	Unit
			description and numbers							

Date	Country Of Origin	Exporter	Country Of Destination	Importer	HTS	Cargo Description	First Unit of Measurement		Second Unit of Measurement	
							Quantity	Unit	Quantity	Unit
			description and numbers							

Date	Country Of Origin	Exporter	Country Of Destination	Importer	HTS	Cargo Description	First Unit of Measurement		Second Unit of Measurement	
							Quantity	Unit	Quantity	Unit
			description and numbers							

Source: [name] import and export data for the [name] (Trade Data Memo) and Uni-Tile’s NTAC Report

Table 2: Durian’s WCV Imports

[illegible]

Table 3: Kingway’s WCV Imports

Date	Country of Origin	Exporter	Country of Destination	Importer	HTS	Cargo Description	First Unit of Measurement		Second Unit of Measurement	
							Quantity	Unit	Quantity	Unit
			description and numbers							

Date	Country of Origin	Exporter	Country of Destination	Importer	HTS	Cargo Description	First Unit of Measurement		Second Unit of Measurement	
							Quantity	Unit	Quantity	Unit

description and numbers

Table 4: Lonlas’ WCV Imports

Date	Country of Origin	Exporter	Country of Destination	Importer	HTS	Cargo Description	First Unit of Measurement		Second Unit of Measurement	
							Quantity	Unit	Quantity	Unit
			description and numbers							

Date	Country of Origin	Exporter	Country of Destination	Importer	HTS	Cargo Description	First Unit of Measurement		Second Unit of Measurement	
							Quantity	Unit	Quantity	Unit

description and numbers

Date	Country of Origin	Exporter	Country of Destination	Importer	HTS	Cargo Description	First Unit of Measurement		Second Unit of Measurement	
							Quantity	Unit	Quantity	Unit
			description and numbers							

Source: [

] import and export data for the [

name

] (Trade Data Memo) and Lonlas’ NTAC Report

Table 5: Maika'i's WCV Imports

Date	Country of Origin	Exporter	Country of Destination	Importer	HTS	Cargo Description	First Unit of Measurement		Second Unit of Measurement	
							Quantity	Unit	Quantity	Unit
			description and numbers							

Date	Country of Origin	Exporter	Country of Destination	Importer	HTS	Cargo Description	First Unit of Measurement		Second Unit of Measurement	
							Quantity	Unit	Quantity	Unit

description and numbers

Date	Country of Origin	Exporter	Country of Destination	Importer	HTS	Cargo Description	First Unit of Measurement		Second Unit of Measurement	
							Quantity	Unit	Quantity	Unit
			description and numbers							

Source: [

name

] import and export data for the [

] (Trade Data Memo) and Maika'i's NTAC Report

Table 6: Top Kitchen’s WCV Imports

[

Date	Country of Origin	Exporter	Country of Destination	Importer	HTS	Cargo Description	First Unit of Measurement		Second Unit of Measurement	
							Quantity	Unit	Quantity	Unit
				description and numbers						

